

August 28, 2015



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16547

EXPIRATION DATE: December 31, 2015

1. GRANTEE: Gateway Pyrotechnic Productions, LLC
dba Gateway Fireworks Displays
St. Louis, MO
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the one-way transportation in commerce of approximately 77 cartons of unapproved fireworks from Garden City, GA to an approved storage bunker in Illiopolis, IL by motor vehicle. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.300 and 172.400 in that the inner packages are not marked or labeled, 172.301(c) in that the special permit number marking is waived and 173.56 in that examination of new explosives is required, except as provided herein.

5. BASIS: This emergency special permit is based on the application of Gateway Pyrotechnic Productions, LLC, dba Gateway Fireworks Displays dated August 11, 2015, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant injury to persons or property.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Fireworks	1.1G	UN0333	II

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Prescribed packaging is as authorized in the HMR, except the inner packages are not marked or labeled.
- b. OPERATIONAL CONTROLS -
- (1) Transportation is authorized one-time, one-way from Garden City, GA, to an approved storage bunker in Illiopolis, IL. No further transportation is authorized.
 - (2) Transportation must be between completed in the shortest time-frame possible while at all times adhering to all federal, state and local regulations relative to the operation of a commercial motor vehicle on a public highway. As much as possible, transportation must be conducted so as to avoid rush-hour traffic and avoid high density traffic.
 - (3) Transportation must be conducted on highways and avoid residential areas as much as possible.
 - (4) No type of oxidizer, fuel, flammable solid or combustible device or item may be transported.

- (5) The appropriate PHMSA Safety Regional Office must be notified at least 48 hours in advance of any shipment.
 - (6) A statement must be provided to DOT when the shipment arrives at the applicant's storage facility.
 - (7) Gateway Pyrotechnics must hold a valid Hazardous Materials Safety Permit from the Federal Motor Carrier Safety Administration to operate under the terms of this special permit.
8. SPECIAL PROVISIONS:
- a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - b. MARKING - Each consolidation unit must be marked "DOT-SP 16547."
9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the
Hazardous Materials Safety Homepage at

http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm

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PO: HERZOG